

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR A PARCEL OF LAND BEING SITUATED IN A PORTION OF THE EAST HALF OF THE EAST HALF OF THE SECTION 20, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, (LOCATED APPROXIMATELY 150 FEET WEST OF THE INTERSECTION OF CONVERSE AVENUE AND OGDEN ROAD)."

WHEREAS, a public hearing to receive public input and comments on the proposed annexation of the above described property was held before the governing body on October 22, 2012; and

WHEREAS, the governing body finds that the following conditions exist as set forth in Wyo. Stat. §15-1-402:

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town;
- (iii) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with the City of Cheyenne;
- (v) The City of Cheyenne does not own or operate its own electric utility, and its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyo. Stat. §15-1-410;
- (vi) The City of Cheyenne, not less than twenty (20) business days prior to the public hearing required by Wyo. Stat. §15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of Wyo. Stat. §15-1-402 and notice of the time, date and location of the public hearing required by Wyo. Stat. §15-1-405(a).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the above described property meets the requirements for annexation under Wyo. Stat. §15-1-402 (a) (i-vi) and that conditions and required procedures have been met to proceed with annexation of a parcel of land being situated in a portion of the East Half of the East Half of the Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2012.

RICHARD L. KAYSEN, MAYOR

SEAL:
ATTEST:

CAROL INTLEKOFER, CITY CLERK

ANNEXATION REPORT & STAFF REPORT

Scenic Development **Summation**

Annexation

CASE NUMBER: A-12-00002 **FILE CODE:** SCNC-A

PUBLIC HEARING: October 22, 2012

REQUIRED DOCUMENTS: All required documents have been submitted and reviewed by staff.

RECOMMENDATION: Adoption of Resolution of Compliance

October 22, 2012

ANNEXATION REPORT & STAFF REPORT**Scenic Development**
Summation

Annexation

CASE NUMBER: A-12-00002 **FILE CODE:** SCNC-A**OWNER:** Cole, Frank M et al c/o AFFLECCCK 307-634-4577
1983 Cheshire Dr
Cheyenne, WY 82001**AGENT:** John Steil 307-634-7273
c/o Steil Surveying Services, LLC
PO Box 2073
Cheyenne, Wyoming 82003**REQUEST:** Annexation to the City of Cheyenne**LOCATION:**

- 1) Legal Description: Portion of E1/2E1/2 of Section 20, Township 14 North, Range 66 West, of the 6th p.m., Laramie County, Wyoming
- 2) General Location: Approximately 150' west of the intersection of Converse and Ogden
- 3) Address: TBD

CURRENT ZONING: A-1 (County)**PROPOSED ZONING:** TBD**EXISTING LAND USES:** Vacant land (+/- 20.87 total acres)**PROPOSED LAND USE:** Multifamily housing development*Zoning:* The property is zoned A-1. Proposed zoning has not been indicated as of yet.

October 22, 2012

SUMMARY:

Staff recommends approval of this annexation resolution of compliance. This resolution resolves that the minimum statutory criteria can be met with the proposed annexation. The criteria are specifically addressed later in this report. This proposal is for a multifamily project expected to be over 200 units. This sort of land use is consistent with future land use plan and begins a logical transition from a larger commercial center to more neighborhood scale residential and commercial development. The transportation network described in conjunction with this proposal (see Attachment A) does propose deviations from the master transportation plan. In general the transportation plan addresses primarily collector and arterial streets which are the larger streets in the community. The plan helps to establish predictable expectations for both landowners and for the City in terms of anticipating where improvements to the transportation system will be necessary in order to efficiently and safely serve the community. The transportation network will be specifically evaluated during the platting stage of the process. A zoning process will also be brought before the City Council in conjunction with this proposal.

COMPREHENSIVE PLAN DESIGNATIONS:

LANDUSE: The land-use plan in PlanCheyenne indicates Mixed Use Commercial Emphasis for this area and generally contemplates a transition from higher intensity commercial to more residential uses to the north. In general the proposed development of multifamily developed to City standards is consistent with the comprehensive plan provided appropriate zoning is pursued.

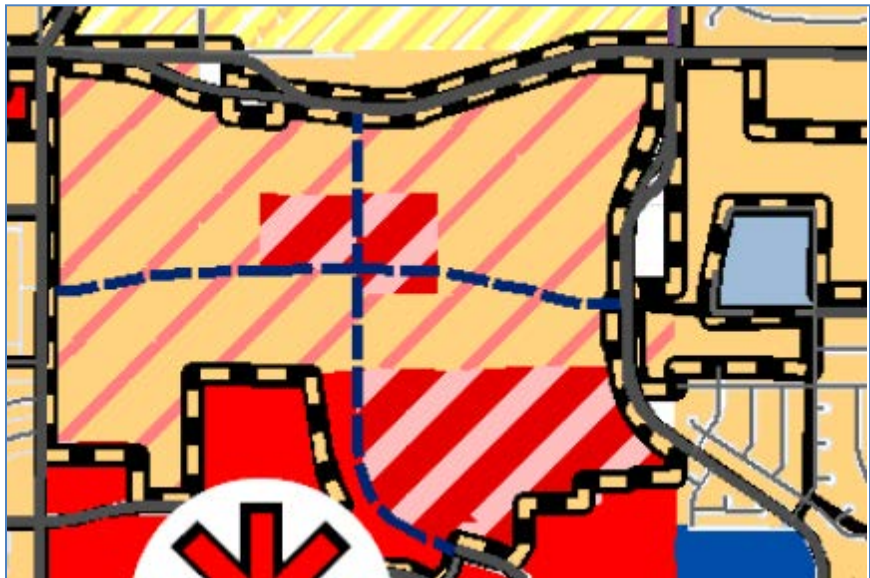


Figure 1 PlanCheyenne, Future Land Use Map

TRANSPORTATION:

The master transportation plan establishes a network of collector and arterials and a corresponding traffic model is also developed to plan for a future transportation system that can be effectively maintained by the City. The transportation and landuse plans also establish reasonable expectations for urban landuses and future transportation improvements by surrounding landowners.

The applicant has submitted a network plan for Section 20 that contemplates significant deviations for the master transportation plan. (See Attachment A.) Significant deviations in this network plan include Rue Terre no longer connecting to Storey Blvd. and the east-west collector is no longer connecting at Converse with a four-way intersection. In addition, off-setting Cutoff Road from Cabin Trail road does not appear optimal for this undeveloped area. A network plan will be required with the preliminary plat and subject to a full review at that time.

The transportation network in Section 20 has proven difficult with the incremental development patterns including many unique circumstances in the developed area including but not limited to:

October 22, 2012

high traffic cut-through behind K-mart and through the Sam's Club parking lot with routine counts of over 1,000 and 4,000 vehicle trips per day respectfully.

This annexation alone does not preclude either the substantial compliance with the master transportation plan or validation of the deviation. However, significant deviations from the transportation plan should require validation of a transportation study for both functionality and goals of the community otherwise reflected in the adopted plans. Amending the master transportation plan and PlanCheyenne may also be required in conjunction with future development actions for this parcel. A PlanCheyenne Amendment would be appropriate in providing a process by which all members of the public affected by these proposed modifications may participate in the discussion.

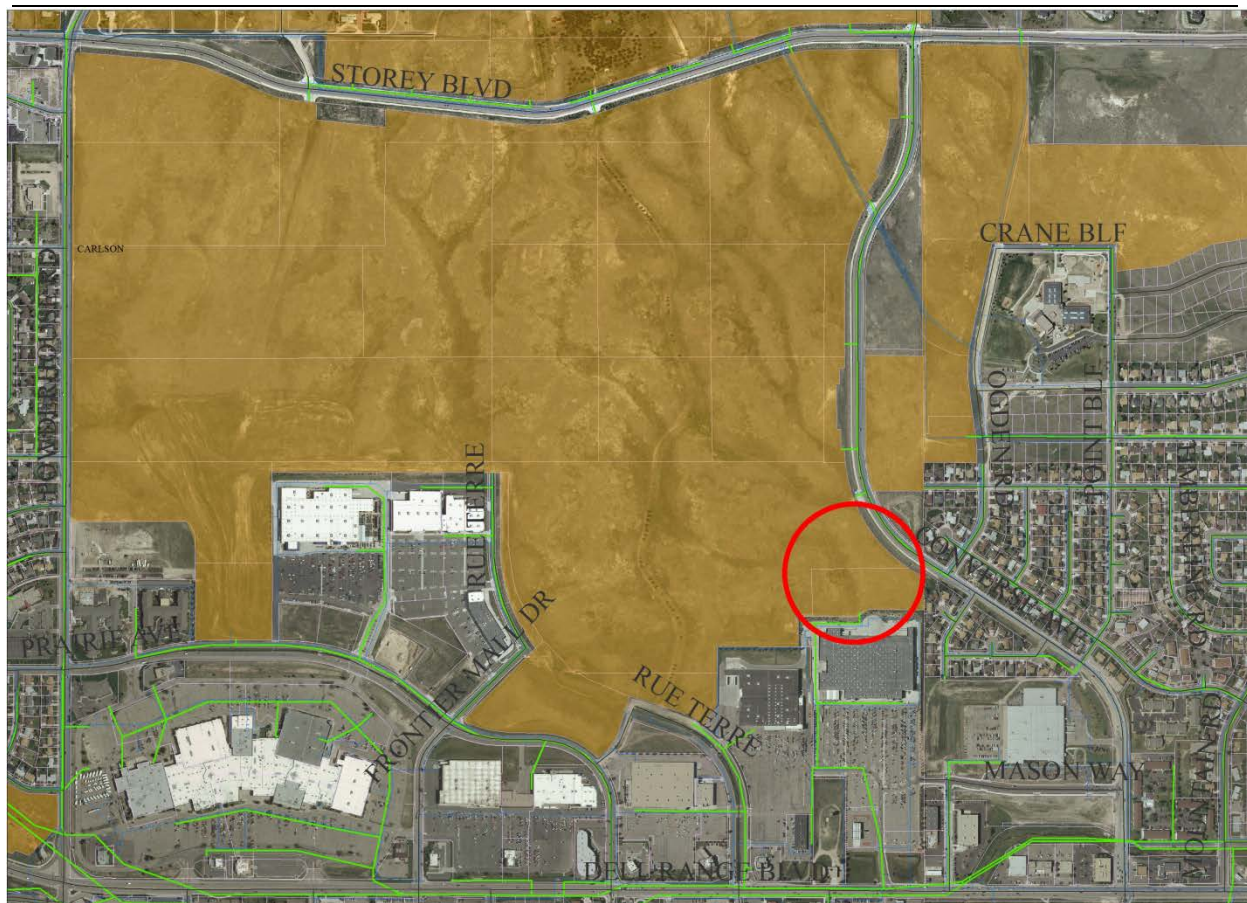
October 22, 2012

DESCRIPTION OF SITE AND SURROUNDINGS: The area being annexed is part of a larger area referred to as Section 20 (1 square mile or 640 acres) which is loosely bounded by Powderhouse, Storey, Dell Range and Converse. Development in this section has predominantly occurred incrementally, working its way north from Dell Range. Over 300 acres remain undeveloped in this section of land. This annexation proposes to annex just under 20 acres for development as multifamily residential.

Immediately to the south of this annexation are the back portions of Wal-Mart and Sam's Club. To the east the annexation area is bounded by Converse Avenue and the back of two single family residential units on Grandview Court. The proposed annexation is about ¼ mile east of the existing Rue Terre and over ½ mile from Storey Blvd.

The proposed street access onto Converse is precluded from a direct connection east into Buffalo Ridge, due to an existing stormwater detention pond on the east side of Converse. The applicant landowner is also developing additional stormwater facilities in the County to the north and east of this site near the existing Anderson School.

.SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Detention Pond, Vacant Land	P, A-1	City, County
South	Wal-Mart, Sam's Club	CB	City
East	Single-Family Houses	MR-1	City
West	Vacant	A-1	County



General vicinity



October 22, 2012

DEVELOPMENT PROCESS: In general, future development on the proposed annexation area will need to go through both preliminary and final plat processes as well as an appropriate zone change. During the preliminary plat phase the transportation and drainage systems will be evaluated, including the previously mentioned transportation network plan. The proposed annexation includes an approximately four-acre detention pond that will serve areas outside of the annexation and plat boundaries. This is unusual because the design of future drainage facilities will also dictate the future transportation and land use patterns. This complicates the matter further because the landowner in the un-annexed area may also pursue the development of stormwater facilities without City review in the County, similar to those developed near Anderson School.

In addition to the platting and zoning process, the development of multifamily will also require a site plan, construction design, and associated design elements consistent with City Code.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body of any city or town, at a hearing as provided in W.S. 15-1-405, shall find that:

- 1) The annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town. **Findings:** The City of Cheyenne has adopted zoning and other City codes to assure new and existing development will provide for the health, safety and welfare of those future residents and users of the annexed area and the community as a whole. By annexing, future landowners have agreed to comply with said regulations. In addition the City has the ability to adopt, by ordinance, rules and regulations that provide assurances the City will continue to provide for the health, safety and welfare of the community into the future.
- 2) The urban development of the area sought to be annexed constitutes a natural, geographical, economical, and social part of the annexing city or town. **Findings:** The proposed annexation area is part of a larger area that is 100% contiguous to the City. Adjacent roadways are under City jurisdiction and are maintained by the City. Additionally the parcel is served by existing greenway also maintained by the City. This area is included in PlanCheyenne for urban development. The parcel is located adjacent to major commercial and residential centers which include a variety of neighborhoods, schools, commercial centers and various services including medical. City-run transit system is nearby as well.
- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed. **Findings:** This area is included in the City's plans for extensions of City services, including water and sewer, provision of City services and expansion of the transportation system. To the degree that future development will be required to develop according to City regulations and consistent with adopted City planning documents, the annexed area is a feasible addition to the City
- 4) The area sought to be annexed is contiguous with the annexing city or town, or the area meets the requirements of W.S. 15-1-407. **Findings:** The property is approximately 55% contiguous with existing City limits and part of a larger area that is 100% contiguous. The parcel shares approximately 1,000 feet with the existing City boundary and is located adjacent to an arterial roadway in the City.

October 22, 2012

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. **Findings:** Franchises are in place to serve this property.
- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405 (a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405 (a). **Findings:** The required information was sent September 18, 2012.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Water and sewer services are available to the property from the property to the south and from Converse. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees and for commercial units tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Board of Public Utilities:

1. There currently are no water or sewer utilities to serve this property. The property Owners shall be required to extend the sanitary sewer utilities from their current location to the farthest point (or points) of the property being annexed. These utility extensions shall be to a point (or points) that are logical for projected future connections to future development projects, as determined by the BOPU and the property owners/developer. The sewer needs to be design to flow down to the sewer main behind the Wal- Mart Store and not to the Converse Ave. sewer main.
2. A Wyoming Professional Engineer will need to submit proposed site plans with all utilities and overall projected design, plans and profiles to the Board of Public Utilities. After BOPU's review and signature of approval, the design engineer will need to send the plans to the (D.E.Q.) for approval and a permit to construct. When the D.E.Q. permit is issued, City's Engineer's Office and Cheyenne Fire Department have reviewed and signatures of approval are on the cover sheet. Then the Agent/Owner may employ a licensed contractor to install the utilities, apply for all applications for water/sewer tap permits from the

October 22, 2012

BOPU, and request a preconstruction meeting with all parties involved prior to construction.

3. All BOPU's water/sewer utilities shall be located in the City of Cheyenne Street Right-of-Ways or have the appropriate easements record at the Clerk of Laramie County Real Estate Office or easements shown on the recorded plat.
4. All water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

City Surveyor:

1. The ANNEXATION DESCRIPTION appears to correctly described the subject lands and closes mathematically.
2. In the CURVE TABLE the Chord Azimuth for C10 and C11 do not match the ANNEXATION DESCRIPTION. The 299 degrees provided should read 119 degrees in order to match the ANNEXATION DESCRIPTION. This should be corrected.
3. The most southerly line of this annexation, being common with the northerly line of Lot 1, Block One, Cole Fire Station Addition Fourth Filing, and the two side dimensions provided do not add up to the record distance of 600.00' provided on the plat for Cole Fire Station Addition Fourth Filing. This should be reviewed and corrected or explained.
4. NOT A REQUIREMENT: the ANNEXATION DESCRIPTION, CURVE TABLE and boundary data are shown in Azimuth format, while the CITY CONTROL ties are shown in Bearing format. My suggestion would be to have one format used for the plat.

City Engineering:

1. The soils report submitted does not meet the requirements of City Code Section 1.16.030(B)(2).
2. The annexation map submitted includes several errors: - Lots, blocks, and streets are shown on the annexation map that do not currently exist. - Converse Ave. to the east of the site is shown as being neither annexed nor non-annexed. The correct status is annexed.
3. This annexation map shows an 80' ROW of street proposed along the northern boundary of the site with a 302' centerline radius. This layout is consistent with a Collector. The developer should be aware that if the Transportation Network Plan required with the Preliminary Plat submittal (UDC Section 4.3.2) shows future traffic levels that require the street to be a minor arterial, 100' of ROW will be required and the minimum centerline radius required will be 573'.

Traffic Engineering:

1. All information that is reasonably necessary to evaluate the application has not been submitted (ref. Article 3, Section 3.1.1.c, UDC). The application does not reflects sound planning and urban design principals with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (Article 2, Section 2.1.2.d.2, UDC). The long term improvement shall be those documented in the City's Transportation Master Plan and any other Long term improvements adopted through the Cheyenne MPO and/or included in the State Transportation Improvement Program (Article 3, Section 3.1.3.f, UDC). This development requires a higher degree of specific planning based on the complexity of the development, the difficulty of integrating development into the site or

October 22, 2012

vicinity, and the degree of flexibility desired from generally applicable design standards (Article 2, Section 2.2.2.s, UDC).

2. The classification and alignment of the roadways on the Conceptual Road Network appear to have been determined without the benefit of the Master Transportation Planning Study. The conceptual Road network has never been formally submitted and is not consistent with any previously approved regulating plan or development master plan. With no projected build-out of the area, it would appear that the growth in vehicle traffic will far outpace any transportation system roadway improvements necessary to mitigate capacity and access issues. It is requested that a Master Transportation Planning study be prepared. A Master Transportation Study for the remaining undeveloped area in the Square mile between Storey Boulevard and Dell Range Boulevard and Powderhouse Road and Converse Avenue should precede the Transportation Impact Study for the apartment project.
3. It is imperative that the studies be completed and provided for review and approval to insure that the right-of-way for future use is preserved and that the proposed infrastructure will provide capacity and access to accommodate all subsequent future growth. It is important that the alignment, right-of-way needs, and design details of streets and highways be identified well ahead of actual development so that proper planning of areas can occur. A Master Transportation Planning Study would identify the impacts associated with a phased approach development will have on existing and proposed transportation systems, both at the immediate location and in the general area and the milestones that trigger the need for additional improvements to mitigate those impacts.
4. The Cheyenne Area Master Plan has a Buildout Roadway Vision Plan, herein referred to as the Plan. The Plan designates roadways and corridors that should be preserved for future use. The proposed Conceptual Road network differs substantially from the Plan. For development to occur, the developer will need to build or fund construction of any roadways or infrastructure that is necessary to provide access, increase capacity and/or mitigate adverse impacts of development. Costs and responsibilities associated with transportation often lie entirely on developers in designing and building any infrastructure necessitated by the proposed development.
5. When outside funding sources are necessary for implementation of improvements, a key consideration for inclusion in funding is whether the improvement primarily serves the development or whether it serves a larger area. Identification of needs ahead of development helps to determine which improvements provide the best use of limited funds. The Master Transportation Planning Study requested and the Transportation Impact Study should include a list of improvements, costs and funding sources, including cost participation for funding consideration. The inclusion of this financial element aids in providing a balance between the transportation improvement projects recommended for implementation and the resources of the City, County, and MPO have available to build and maintain transportation facilities and services.
6. The continued approval of Development Actions preceding an approved Master Transportation Planning Study will only build on the success or failure of the existing roadway system. We need to take steps to prevent past mistakes from recurring.

City/County Health:

This property is located within the "201 Area" Facilities Management Plan area and is contiguous to the city limits. The property shall utilize public sewer.

October 22, 2012

School District #1:

This development site falls within the East Triad -- student's home attendance boundaries are East High School, Carey Junior High School and Anderson Elementary Schools.

The current attendance for these schools is as follows:

Anderson Elementary - at capacity with no space available.

Carey Junior High - below capacity with space available in both grades.

East High -- at or above capacity with no space available.

MPO:

1. The Scenic Development annexation action site plan contains a road on the north side of the development named East Carlson. It appears that this road with a NW to SE alignment will be designated as a collector and built with an 80' ROW. The MPO is concerned that this road in practicality will replace the E/W collector mapped in the adopted Master Transportation Plan (MTP) of PlanCheyenne, which would connect the Plainview/Converse intersection on the east to Powderhouse on the west. If the intention of the developer is to change the alignment of roads in the MTP then they need to go through the process of changing the Master Transportation Plan.
2. As the City Governing Body has asked for in the past from this land owner, a master plan for the entire future developable area (Section 20) should be provided and a traffic study justifying the master plan change should be provided. There is another N/S collector from the MTP along the Rue Terre alignment that will be required to be shown on the sub area plan as well. All this needs to be take care of before or concurrently with the annexation of this property.

Police:

1. A 336 unit apartment complex may increase the population of the City by nearly 900-1000 residents. The Cheyenne Police Department has averaged 1.7 police officers per 1000 residents and the national average is 2.3 officers per 1000 residents. Thus, when this project is fully developed the PD should be allowed to budget and hire a minimum of 1.5 officers to meet the demand of the additional calls for service. This addition should take place a year before expected project completion since it takes a year to recruit, hire and train a police officer.

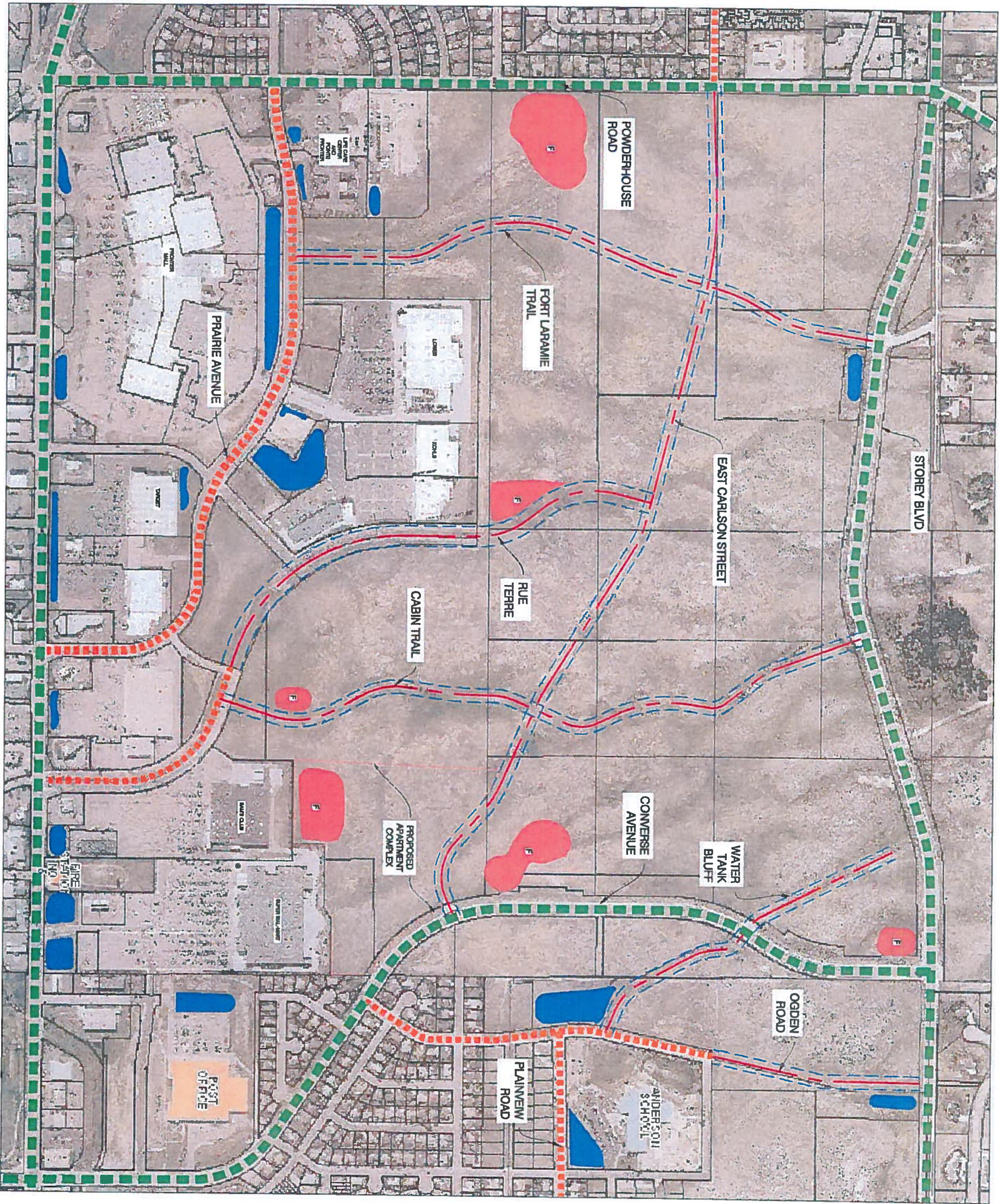
AGENCIES RESPONDING WITHOUT COMMENT: County Assessor, County Planning, Development, Drainage Engineering, Engineering Tech/GIS, Fire, Optimum.

AGENCIES NOT RESPONDING: Emergency Management/Dispatch, CenturyLink, Cheyenne Light Fuel & Power, City Attorney, County Attorney, County Clerk, County Commissioners, County Engineer, County Fire District 2, County Public Works, County Sheriff, Laramie County Conservation District.

OTHER COMMENTS RECEIVED: None

Encl: Annexation Resolution
Annexation Map

cc: Agent
Property owner
File



BUILDING & DEVELOPMENT OFFICE

SEP 25 2012

RECEIVED

BAC

LEGEND

- COLLECTOR ROAD (EXISTING)
- ARTERIAL ROAD (EXISTING)
- COLLECTOR ROAD (FUTURE)
- STORMWATER DETENTION AREA (EXISTING)
- STORMWATER DETENTION AREA (FUTURE)



EXHIBIT D (vi) ROAD NETWORK FOR SECTION 20

AUGUST 9, 2012